CHAPTER P-5 - OFF-HIGHWAY VEHICLE REGULATIONS

INDEX

			Page
ARTICLE I		Pursuant to the authority vested in the Parks and Wildlife Commission by Article 14.5 of Title 33, C.R.S., the following regulations concerning required equipment, off-highway use permits, and the registration of off-highway vehicles are hereby adopted:	
	#500	Registration information required on the application:	1
	#501	Display of validation decals	2
	#502	Display of Off-Highway Use Permits	2
	#503	Safety Equipment	2
	#504	Operation of Off-Highway Vehicles	3
Basis and Purpose Statement			4

CHAPTER P-5 - OFF-HIGHWAY VEHICLE REGULATIONS

ARTICLE I - Pursuant to the authority vested in the Parks and Wildlife Commission by Article 14.5 of Title 33, C.R.S., the following regulations concerning required equipment, off-highway use permits, and the registration of off-highway vehicles are hereby adopted:

 # 500 - Registration information required on the application:

a. Information to be furnished by the applicant:

1. Vehicle make

2. Vehicle model

3. Vehicle identification number

4. Model year

5. Cubic centimeters displacement

6. Date purchased

7. Proof of ownership. Acceptable proof of ownership forms include:

(a) Bill of sale that includes both the seller and buyer's printed names and signatures, the vessel/vehicle identification number (if any), the vessel/vehicle make, model and year (if known), and the date of the sale;

(b) Previous registration certificate issued by a governmental entity that lists the applicant as registered owner;

(c) Manufacturers Certificate of Origin (MCO)/Manufacturer Statement of Origin (MSO);

(d) Certificate of Title;

(e) Any court issued document proving ownership;

(f) A collection of personal property by affidavit form pursuant to 15-12-1201, C.R.S.; or

(g) A physical inspection form completed by a CPW agent.

8. Name and address of applicant

9. Date of birth

10. How the machine is used

b. Additional information set forth on the registration certificate:

1. Registration number

2. Expiration date of registration

3. Notice to owner of procedure to follow when owner changes address

4. Notice to owner of procedure to follow when the machine is transferred, destroyed, abandoned or permanently removed from the state

5. Notice to owner that the operator must carry the certificate of registration while operating the off-highway vehicle

c. Pending registration of an off-highway vehicle, a temporary registration or a dated bill of sale, in the possession of the operator, permits the operator of the newly purchased off-highway vehicle to operate in the State of Colorado for a period not to exceed thirty (30) days from the date of purchase.

 # 501 - Display of validation decals

a. Validation decals shall be permanently affixed in a location on the upper forward half of the off-highway vehicle to assure good visibility of the decals.

b. Dealers and manufacturers may display validation decals on a detachable plate.

c. Prior to issuing validation decals, the distinctive registration number assigned by the Division shall be permanently marked upon the validation decal.

 # 502 - Display of Off-Highway Use Permits

A. When owners or operators of vehicles identified in C.R.S. 33-14.5-112 are required to obtain and display off-highway use permits, such permits shall be displayed as follows:

1. For motorcycles and three wheelers: permanently affixed to the outside face of the upper end of the left fork.

2. For all-terrain vehicles (ATVs): permanently affixed to the upper left fender in an observable location.

3. For side-by-sides and utility terrain vehicles (UTVs): permanently affixed to the outside face of left roll bar in an observable location.

4. For plated, full size vehicles: permanently affixed to the front bumper left side of the license plate.

5. Printed non-sticker permits must be carried in the vehicle or on the operator’s person and shall, upon demand of any peace officer authorized to enforce this law, produce the off-highway use permit for inspection.

 # 503 - Safety Equipment

A. Except as provided in section 33-14.5-109 C.R.S., no person shall operate an off-highway vehicle upon public land in this state unless:

1. The off-highway vehicle is equipped with a muffler that is properly maintained and in good working order.

2. The muffler must conform to noise abatement standards set forth in 25-12-110, C.R.S. as amended.

B. Except as provided in section 33-14.5-109 C.R.S., no person shall operate an off-highway vehicle upon public land in this state unless the off-highway vehicle is equipped with a spark arrester in good working order which has been approved by the U.S. Forest Service as evidenced by the bona fide permanent marking of “qualified” or “approved” on the spark arrester. A spark arrester is a device which traps or pulverizes exhaust particles as they are expelled from an internal combustion engine exhaust system and is effective in reducing exhaust sparks and protecting against exhaust spark fires.

C. No off-highway vehicle shall be operated upon public land in this state between the hours of sunset and sunrise unless it is equipped with at least one headlamp having minimum candlepower of sufficient intensity to reveal persons or objects at a distance of at least 100 feet ahead under normal atmospheric conditions. Such headlamp shall be aimed so that glaring rays are not projected into the eyes of operators in oncoming vehicles when operated on a straight level surface.

D. No off-highway vehicle shall be operated upon public land in this state between the hours of sunset and sunrise unless it is equipped with at least one red tail lamp having a minimum candlepower of sufficient intensity to exhibit a red light plainly visible from a distance of 500 feet to the rear under normal atmospheric conditions.

E. Except as provided in section 33-14.5-109 C.R.S., no person shall operate any off-highway vehicle upon public land in this state unless the off-highway vehicle is equipped with a braking system that may be operated by hand or foot, capable of producing deceleration of 14 feet per second on level ground at a speed of 20 miles per hour. The braking system must be adequate to control the movement of, and to stop and to hold the off-highway vehicle stationary on any grade upon which operated.

 # 504 - Operation of Off-Highway Vehicles

A. Where the State, the United States, or any agency thereof, has designated any public street, road, or highway of this state open to off-highway vehicles or where local political subdivisions have authorized by ordinance or resolution the establishment of off-highway vehicle routes to permit the operation of off-highway vehicles on city streets or county roads pursuant to the authority granted in C.R.S. 33-14.5-108(1), or upon public land in this state, no person shall operate an off-highway vehicle while carrying any person riding in any position that will interfere with the operation or control of an off-highway vehicle or the view of the operator.

B. Where the State, the United States, or any agency thereof, has designated any public street, road, or highway of this state open to off-highway vehicles or where local political subdivisions have authorized by ordinance or resolution the establishment of off-highway vehicle routes to permit the operation of off-highway vehicles on city streets or county roads pursuant to the authority granted in C.R.S. 33-14.5-108(1), no person under the age of ten years may operate an off-highway vehicle on such public street, road, or highway of this state or on such city street or county road. No person ten years of age or older may operate an off-highway vehicle on such public street, road, or highway of this state or on such city street or county road unless:

1. The person has in his possession a valid driver's license issued by the State of Colorado or another state; or

2. The person is accompanied by and under the immediate supervision of a person who has in his possession a valid driver's license issued by the State of Colorado or another state. The phrase “under immediate supervision” shall mean that, at a minimum, the unlicensed operator is within direct visual contact of the licensed supervisor.

Basis and Purpose:

The statements of basis and purpose for these regulations can be obtained from the Colorado Division of Parks and Wildlife, Office of the Regulations Manager by emailing Krista Heiner at krista.heiner@state.co.us. The statements of basis and purpose are not available at the Division of Parks and Wildlife headquarters due to the closure of these facilities to the public in light of the COVID-19 pandemic and Executive Orders D 2020 017 and D 2020 024.

The primary statutory authority for these regulations can be found in § 24-4-103, C.R.S., and the state Parks Act, §§ 33-10-101 to 33-33-113, C.R.S., and specifically including, but not limited to: §§ 33-10-106, C.R.S.

EFFECTIVE DATE - THESE REGULATIONS SHALL BECOME EFFECTIVE NOVEMBER 1, 2018 AND SHALL REMAIN IN FULL FORCE AND EFFECT UNTIL REPEALED, AMENDED OR SUPERSEDED.

APPROVED AND ADOPTED BY THE PARKS AND WILDLIFE COMMISSION OF THE STATE OF COLORADO THIS 6TH DAY OF SEPTEMBER, 2018.

APPROVED:
John V. Howard
Chairman

ATTEST:
James Vigil
Secretary